

Present : Sh. Satish Aggarwal, Senior Counsel alongwith
Sh. Prashant Baliyan, I.O. for the complainant, SFIO.
Sh. Vishal Gupta, counsel for applicants-accused Love Kush
Sharma (A-145), Avinash Kumar Tyagi (A-148), Poonam
Madan (A-151) and Joydeep Dasgupta (A-144)
Sh. Vishal Gosain, Counsel for applicant-accused Aditya
Sharda (A-141).
Sh. Vishal Gupta, Advocate, proxy counsel for Sh. Sanjeev
Jain, counsel for applicants-accused Praveen Maheshwari
(A-156) and Rajeev Maheshwari (A-157).
Sh. Arun Singh, Advocate, proxy counsel for Sh. Joydip
Bhattacharya, counsel for applicants-accused Ichchitta
Dungarwal (A-180), Neha Kataria (A-181) and Abhay K.
Shah (A-127)
Sh. Mahesh Dutt Sharma, counsel for applicants-accused A-
155, A-163, A-164, A-165, A-166, 170, 171, 172, 178 and
187.
Sh. Carun Chugh, counsel for applicant-accused A-111.
Sh. Puneet Sharma, counsel for applicant-accused A-147.
Sh. Puneet Sharma, counsel for accused No.A-149.
Sh. Nitish Bhardwaj, counsel for applicant-accused A-106.
Sh. Nitin Saini, Advocate, proxy counsel for Sh. H.S.
Sharma, counsel for applicant-accused A-103 for Sh. Rajesh
Kumar, counsel for applicant-accused No.A-110.
Accused Mukesh Modi, Rahul Modi, Vaibhav Lodha,
Virender Modi, Rohit Modi, Rajeshwar Singh, Bharat Modi,
Ishwar Singh Sindhal, Vivek Purohit and Bharat Das
Vaishnav in custody.
Sh. Prashant Yadav, counsel for accused No.A-123.

Applications seeking permanent exemption from personal
appearance of accused Love Kush Sharma (A-145), Avinash Kumar Tyagi
(A-148), Poonam Madan (A-151) and Joydeep Dasgupta (A-144) have
been filed. Copy supplied to the counsel for the complainant. To com up
on 19.10.2019 for reply and arguments.

Application seeking exemption from personal appearance of
applicant-accused Aditya Sharda (A-141) has been filed. It was argued
that the accused was suffering from viral fever. It was argued from the

side of the prosecution that this application was not maintainable because against the applicant-accused Aditya Sharda warrant of arrest had already been issued. Learned counsel for the applicant has placed reliance upon Arunkumar N. Chaturvedi Vs. The State of Maharashtra and another, Writ Petition No.4429 of 2013 (Bombay) decided on 24.12.2013, and Chundru Ammanna Vs. Asstt. Commissioner of Labour and others, Crl. P. No.818 of 2000 (Andhra Pradesh) decided on 16.2.2000 with regard to the maintainability of the application. This court is of the considered opinion that this application is maintainable. However, there is no medical certificate with the application under discussion. Taking a lenient view in the facts and circumstances of the case, this court is of the considered view that interest of justice would be served if the application is allowed for today. It is allowed accordingly. For reply and arguments on the application filed today on behalf of applicant-accused Aditya Sharda (A-141), for cancellation of warrant of arrest, to come up on 19.10.2019.

Application seeking exemption from personal appearance of applicants-accused Praveen Maheshwari (A-156) and Rajeev Maheshwari (A-157) has been filed on the ground that they were out of station for their official work. Heard. This court is not at all satisfied with the ground mentioned for exemption of personal appearance. However, taking a lenient view in the facts and circumstances of the case, the

application is allowed and personal appearance of both these applicants-accused is exempted for today only.

Applications seeking permanent exemption from personal appearance of accused Ichchitta Dugarwal (A-180) and Neha Kataria (A-181) have been filed. Copy supplied to the counsel for the complainant. To come up on 19.10.2019 for reply and arguments.

Application seeking exemption from personal appearance of accused Abhay K. Shah (A-127) has been filed. Heard. It was argued that applicant-accused had approached the Hon'ble High Court and his application for exemption from appearance might be granted for this date. This court in the given facts and circumstances is not satisfied with regard to filing the application seeking his exemption as no relief has been granted so far by the Hon'ble High court and merely for availing of a remedy which was not granted by the Hon'ble High Court, it would not be justified to grant the exemption especially when anticipatory bail application of this applicant-accused has already been dismissed by this Court.

It was argued by the counsel for applicants-accused A-155, A-163, A-164, A-165, A-166, 170, 171, 172, 178 and 187 that all these accused were not present today in view of the observations made by this court vide order dated 4.9.2019. The relief granted to them by this Court on 4.9.2019 shall continue till the decision of the anticipatory bail applications.

Application seeking exemption from personal appearance of accused A-111, Company, has been filed. Heard. It was argued that authorized representative of accused A-111-Company could not appear today as he was suffering from fever. This application is neither supported by any affidavit nor any medical certificate. However, taking a lenient view in the facts and circumstances of this case, this application is allowed and personal appearance of applicant-accused A-111, Company, is allowed for today only.

Application seeking exemption from personal appearance of applicant-accused A-147 has been filed. Heard. It was argued that anticipatory bail application was pending before the Hon'ble High Court. It was argued on behalf of the prosecution that warrant of arrest had already been issued against the accused and no interim protection had been granted by the Hon'ble High Court. In the facts and circumstances of the case allowing this application seeking exemption on this ground would tantamount to do something which has not been done by the Hon'ble High Court. This Court refrains from this misadventure. So, the application is dismissed.

It was argued with regard to accused No.A-149 that the Hon'ble Apex Court had granted the period of 10 days and within that stipulated period the application for anticipatory bail was filed which was fixed for tomorrow. When the order of the Hon'ble Apex Court is read in the light of aspect of liberty of an individual, this Court is inclined to grant

exemption for today. In the facts and circumstances of this case, the application is allowed and personal appearance of this applicant-accused is exempted till the pendency of his anticipatory bail application.

Application seeking exemption from personal appearance of applicant-accused A-106 has been filed. Heard. It was argued that authorized representative of accused A-106, Company could not appear today as he was suffering from fever. This application is neither supported by any affidavit nor any medical certificate. However, taking a lenient view in the facts and circumstances of this case, this application is allowed and personal appearance of applicant-accused A-111, Company, is allowed for today only.

Applications seeking exemption from personal appearance of applicants-accused A-103 and A-110 have been filed. Heard. It was argued that authorized representatives of both these accused Companies could not appear today as they were out of station. This Court is not satisfied with the ground of seeking exemption. However, taking a lenient view in the facts and circumstances of this case, both these applications are allowed and personal appearance of applicants-accused A-103 and A-110, Companies, are allowed for today only.

Bailable warrants of accused Nazima Khan (A-152), Sabbir Khan (A-153), Accused No.A-83, Company, Accused No.A-107, Company, Accused No.A-80, Company, have been received back unexecuted. Be issued for 19.10.2019.

Non-bailable warrants of accused Naveen Choudhary (A-162), Manish Choudhary (A-128), Akshat Singh (A-136), Meenakshi Modi (A-132), Naveen Kumar (A-139), Gurbir Singh Sandhu (A-138), Shinder Pal Singh (A-137), Paras Bolia (A-121), Vinay Kumpawat (A-119), Jinender Vyas (A-118), Abhay K. Shah (A-127), Sudhir Punia (A-143), Neha Gemawat (A-124), Deepak Shrimali (A-129), Parkash Chandra Purohit (A-133), Nithin Rathore (A-116), Raj Sharma (A-160), Leena Harivyasi (A-146), Bharat Kumar Mardia (A-154), Rjiv Kumar Rana (A-177), Peeyush Aggarwal (A-173), Vijay Jhindal (A-175), Sidharth Chauhan (A-135), and Vimal Sanwermal Sharma (A-147) have been received back unexecuted. Be issued for 19.10.2019.

Accused Mukesh Modi, Rahul Modi, Vaibhav Lodha, Virender Modi, Rohit Modi, Rajeshwar Singh, Bharat Modi, Ishwar Singh Sindhal, Vivek Purohit, Bharat Das Vaishnav produced in custody in pursuance of their production warrants. They are remanded to judicial custody till 19.10.2019 and be produced before this Court on that day.

3.10.2019
(Ashok)

Sd/-
(M.M. Dhonchak)
Sessions Judge, Gurugram
(UID No.HR0043).